EDITH MADZINGESU MTETWA
versus
HERBET MTETWA
and
FARAI MUNYAMANI
and
MARCIA TARIRO MSWAZI N.O
and
RIGHTAUS REALITY
and
MASTER OF THE HIGH COURT
and
REGISTRAR OF DEEDS HARARE

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE;5 March & 1 June 2026

Opposed Application for condonation

B Mudhau for Applicant
D Matimba for 1st respondent
F Nyakatsapa for 2nd Respondent
J Ndlovu for 3rd Respondent

TSANGA J

INTRODUCTION

This is a composite application for condonation for the late filing of a certificate of service, as well as an application requesting the Court to determine the substantive matter concerning the removal of the curator bonis / curator ad litem of the deceased's widow, as well as the removal of the executor in the deceased's estate.

Background

The background to the main matter is that the Applicant's husband died in 2003, leaving a will in which he bequeathed a house registered in his name, and in which he and the

Applicant resided, to his son, Herbert Mtetwa, the First Respondent. The will granted the Applicant a usufruct over the property.

It appears that sometime in 2021 the Applicant was institutionalised in a care facility on account of alleged mental health challenges. A curator bonis /curator ad litem was appointed to manage her affairs. During the period of her institutionalisation, her son decided to sell the house on the basis that he required the proceeds to meet the Applicant's expenses at the care facility.

At the hearing of the matter under HCHF3670/23 in October 2025, in which she sought to challenge the sale and actions taken on her behalf in account of her mental challenges, a preliminary point was raised concerning the application's non-compliance with the Rules of the High Court, 2021. Specifically, the certificate of service had not been furnished to the Court within five days of service as required by Rule 58(14). The judge hearing the matter agreed that there had been non-compliance, and the matter was accordingly, struck off the roll.

The Applicant now seeks condonation for that non-compliance and further requests that, if condonation is granted, the Court should proceed to determine the substantive application. Her composite order seeks more fully the following:

1. **Condonation and extension of time**
   An order granting condonation and extending the time within which the Applicant may file a court application in terms of Rule 59 of the High Court Rules, 2021, with no order as to costs unless opposed.
2. **Setting aside the appointment of the curator bonis**
   An order nullifying the appointment of the Second Respondent as the Applicant's curator bonis under Letter of Confirmation ADM01/21.
3. **Removal and replacement of executrix dative**
   An order removing the Third Respondent as executrix dative of the Estate of the Late Peter Mutaniso Mtetwa (DR3166/2003) and reinstating the Applicant as executrix of the estate.
4. **Nullification of the curator's decisions**

An order setting aside all decisions and actions taken by the Second Respondent while acting as curator bonis on behalf of the Applicant.

5. **Nullification of the executrix's decisions**

   An order setting aside all decisions and actions taken by the Third Respondent as executrix dative of the estate.

6. **Reversal of the sale and transfer of property**

   An order setting aside the sale of Stand 14028 Salisbury Township Lands held under Deed of Transfer 3090/1996, including cancellation of any transfer already effected and reinstatement of the original deed of transfer.

   Accounting and return of property/documents

   An order compelling the Second Respondent to:

- provide a full account of all transactions conducted on behalf of the Applicant; and
- return all documents and movable property belonging to the Applicant within ten days.

7. **Costs**

   No order as to costs if the application is unopposed. If opposed, the First, Second, and Third Respondents are to pay costs on the legal practitioner and client scale.

The Respondents all oppose the application. The First Respondent contends that the certificate of service could have been filed manually in August 2023 and further argues that the property was validly bequeathed to him under the will. The Second Respondent submits that the application improperly combines interlocutory and substantive relief and maintains that the appointment of the curator was lawful and regular. The Third Respondent argues that the application is premature and improperly before the Court. She contends that allegations of misconduct and fraud fall within the statutory mandate of the Master in terms of sections 116 and 117 of the Administration of Estates Act, and that the Applicant has failed to exhaust the remedies available under that legislation. Furthermore, the will has not been challenged, and the Applicant herself accepted appointment as executrix under the same will.

The considerations

In an application for condonation, the Court must consider the extent of the delay, the explanation for the non-compliance, the prospects of success on the merits, and the prejudice likely to be suffered by the opposing parties. See *Kodzwa* v *Secretary for Health & Anor*

1999 () ZLR 313 at 315 B-E. This judgment must therefore address whether condonation should be granted and whether the time for filing should be extended. The Applicant's request that the Court immediately determine the substantive application presupposes that condonation will be granted. Yet an application for condonation necessarily requires a holistic consideration of all the relevant factors. The court, as stated in *Friendship* v *Cargo Carriers Ltd & Anor* 2013 (1) ZLR 1 (S), has the discretion as to whether or not to grant condonation. That power is not exercised arbitrarily.

The Applicant contends that the relevant period of delay only commenced on 15 October 2025 when she became aware at the hearing that the certificate of service had not been filed. She therefore characterises the delay as only 47 days before the filing of the present application made on 2 December 2025. She submits that such delay is not inordinate.

Her explanation for the non-compliance is that the certificate of service was contained in the physical court file and that its absence from the Integrated Electronic Case Management System (IECMS) resulted from an inadvertent omission during the migration from the manual filing system to the electronic platform. Her legal practitioner filed a supporting affidavit, although he stated that he could not specifically recall whether the certificate had been filed under those circumstances.

The Applicant asserts that her prospects of success are strong because, in her view, the curator bonis and the executrix acted fraudulently in selling her home and placing her in a care facility despite her alleged mental stability. She further argues that the will ought not to have bequeathed the house to the First Respondent because she contributed towards its acquisition and was its rightful beneficiary. Her position is that what was disposed off was a house to which she was entitled to a share and that the disposition was contrary to the Wills Act itself. She also relies upon the Deceased Estates Succession Act [*Chapter 6:02*], which governs intestate succession and protects a surviving spouse's entitlement to the matrimonial home. She argues that its principles should apply in the present case.

As regards prejudice, the Applicant contends that the Respondents would suffer no prejudice that cannot be adequately be compensated by an award of costs. She ultimately seeks a composite order granting both condonation and the substantive relief sought in the main application.

Analysis

The obligation to file the certificate of service arose within five days of service effected on 31 August 2023, namely by 8 September 2023. Upon the failure to do so, the application was deemed abandoned. Although the Applicant's legal practitioner expresses uncertainty as to whether the certificate was filed, this does not entirely negate the Applicant's explanation that she only became aware of the omission in October 2025. Courts nevertheless require a reasonable and credible explanation for procedural defaults, particularly so in matters involving public records and property rights.

In my view, the explanation that the omission arose during the migration to the electronic filing system is plausible. The transition to IECMS was accompanied by administrative challenges and occasional omissions of documents were not uncommon. However, even accepting the Applicant's contention that the delay should be calculated from the date the matter was struck off the roll, there remains an unexplained delay of 47 days before the present application was filed.

The Applicant offers no satisfactory explanation for why it took a further 47 days to seek condonation after becoming aware of the default. While a delay of 47 days is not necessarily inordinate, it is nevertheless significant given the nature of the procedural lapse. An application for condonation and extension of time to file the certificate of service could and should have been brought almost immediately. The Applicant's conduct betrays a degree of hesitation regarding the merits of her case.

That hesitation is understandable. The prospects of success in the substantive application, as presently framed, are extremely limited. The will was accepted by the Master and the estate administered on that basis. The Applicant herself accepted appointment as executrix under that same will and acted in that capacity for many years. Moreover, the Wills Act emphasises freedom of testation as have our courts in interpreting that Act. The house was registered in the now deceased Peter Mtetwa’s name. The parties were married out of community of property. As explained *Chiwada* v *Chigwada* 2020 (2) ZLR 1353 (S) this has profound implications:

> “The law that governs the property rights of married persons referred to in s 5(3)(a) of the Wills Act is the Married Persons Property Act, which states that since 1929 marriages in Zimbabwe are out of community of property. Spouses in a marriage out of community of

> property are legally entitled to own and dispose of property in their individual capacities. The import of having marriages out of community of property is that a spouse is allowed to own, in his or her personal capacity, movable and immovable property and any other rights or interests of value. If a spouse has immovable property registered in his or her name, be it the house used as the matrimonial home, he or she has the right to dispose of it by will to whomsoever he or she chooses. The right of a property owner to dispose of his or her estate by will to whomsoever he or she chooses is one of the rights constituting ownership of property. …….”

The will has never been set aside. Furthermore, the Applicant's reliance on the Deceased Estates Succession Act is misplaced. That Act applies to estates where the deceased died intestate. It has no application where a valid will exists and remains operative.

The real issue appears to be whether the Applicant's usufruct survived the sale of the matrimonial home. That is a distinct legal question. A usufruct does not necessarily extinguish upon sale of the property and may be enforceable against successors in title, depending on the circumstances. If the Applicant seeks relief, that is the issue she ought properly to pursue against the beneficiaries of the sale and the purchaser of the property.

The prejudice to the Respondents in granting condonation is also considerable. They would be compelled to defend litigation with little prospect of success, incurring substantial costs and further delaying the finalisation of an estate that has been under administration for many years.

The substantive application is fundamentally flawed. Allegations of fraud and misconduct against the curator and executrix fall within the statutory jurisdiction of the Master, yet the Applicant has not invoked those remedies. She has therefore failed to exhaust the procedures prescribed by law before approaching this Court.

In addition, the curatorship order remains valid and effective until properly discharged. The Applicant has not demonstrated any legal basis upon which she can challenge decisions taken pursuant to that order. Her *locus standi* to impugn actions lawfully undertaken under an existing curatorship is therefore doubtful.

The First Respondent has acted in reliance upon the testamentary disposition made in his favour, and the estate has been administered accordingly. To grant condonation at this stage would undermine settled rights and expectations without sufficient justification.

Conclusion

The Applicant has failed to provide a satisfactory explanation for the delay and procedural non-compliance. The application is premature, procedurally defective, and does not engage the appropriate statutory remedies. There is no reasonable prospect that granting condonation would facilitate meaningful substantive relief, particularly where the Applicant has not first pursued the remedies available through the Master.

Order

1. The Applicant's application for condonation for the late filing of the certificate of service is dismissed.
2. The application for an extension of time to pursue the main application challenging the curatorship and the sale of the property is dismissed.
3. There shall be no order as to costs.

TSANGA J:……

Mundia & Mudhara, Applicant's Legal; Practitioners
1Matipano & Matimba, 1st Respondent's Legal Practitioners
Mutonhori Attorneys, 2nd Respondent's Legal Practitioners
Ndlovu Attorneys, 3rd Respondent's Legal Practitioners